

1 ENGROSSED SENATE
2 BILL NO. 1767

By: Coleman of the Senate

3 and

4 Pfeiffer of the House
5

6 An Act relating to alcoholic beverages; prohibiting
7 certain retailer from shipping certain alcoholic
8 beverages in this state; allowing the Attorney
9 General to bring civil action; allowing the Attorney
10 General to initiate certain proceedings; allowing the
11 Alcoholic Beverage Laws Enforcement Commission to
12 initiate investigations; requiring the Commission to
13 assist the Attorney General; establishing certain
14 civil penalty; establishing certain separate
15 violations; requiring the Attorney General or
16 Commission to issue certain notice; creating the
17 Alcohol Enforcement and Regulatory Revolving Fund;
18 providing for codification; providing an effective
19 date; and declaring an emergency.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 3-128 of Title 37A, unless there
23 is created a duplication in numbering, reads as follows:

24 A. No person or retailer licensed outside of this state shall
ship, cause to be shipped, or facilitate the shipment of alcoholic
beverages to any resident of this state or receive payments for or
fulfill any orders of alcoholic beverages destined for delivery
within this state unless otherwise permitted by law.

B. The Attorney General may:

1 1. Bring civil action in federal district court pursuant to 27
2 U.S.C., Section 122a, seeking injunctive relief against any person
3 or entity in violation of this section; or

4 2. Initiate proceedings in state court to enforce compliance
5 and assess civil penalties.

6 C. The Alcoholic Beverage Laws Enforcement Commission may
7 initiate investigations and shall assist the Attorney General with
8 investigations, issue cease and desist orders, and share evidence
9 with the Attorney General.

10 D. Any out-of-state retailer in violation of the provisions of
11 this act may be subject to the greater of:

12 1. A civil penalty not less than Five Thousand Dollars
13 (\$5,000.00) and not more than Twenty-five Thousand Dollars
14 (\$25,000.00) per violation; or

15 2. Treble damages equivalent to the retail value of the
16 alcoholic beverages shipped.

17 E. Each shipment shall constitute a separate violation of this
18 section.

19 F. Prior to initiating civil action, the Attorney General or
20 the Commission shall issue a written notice of violation to the out-
21 of-state retailer, requiring cessation of any shipments in violation
22 of this act within five (5) calendar days and notifying such
23 retailer that failure to comply shall trigger formal enforcement.
24

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 3-129 of Title 37A, unless there
3 is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Alcoholic Beverage Laws Enforcement Commission to be
6 designated the "Alcohol Enforcement and Regulatory Revolving Fund".
7 The fund shall be a continuing fund, not subject to fiscal year
8 limitations, and shall consist of all monies received by the
9 Commission pursuant to subsection D of Section 1 of this act for the
10 purpose of supporting legal enforcement actions of the Commission,
11 enhancing compliance efforts and interstate coordination, and
12 funding public education campaigns discouraging unlawful shipments
13 of alcoholic beverages. All monies accruing to the credit of the
14 fund are hereby appropriated and may be budgeted and expended by the
15 Commission for the purpose provided for in this section.
16 Expenditures from the fund shall be made upon warrants issued by the
17 State Treasurer against claims filed as prescribed by law with the
18 Director of the Office of Management and Enterprise Services for
19 approval and payment.

20 SECTION 3. This act shall become effective July 1, 2026.

21 SECTION 4. It being immediately necessary for the preservation
22 of the public peace, health or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives